

### 3.5.2.3 Non-performance Damage for failure to meet the Chemical Consumption for Nitrogen Removal

The non-performance damage to be paid to the Employer by the Contractor in the event of the actual consumption is more than committed shall be calculated as follows:

Value = [kg Methanol / kg T-N removed (actual) – kg Methanol / kg T-N removed (committed) x annual T-N load x cost of chemical x N

kg Methanol / kg T-N removed (actual) = the measured and calculated chemical consumption in kg Methanol/kg T-N removed as follows:

Actual annual methanol consumption measured for total nitrogen removal as explained above divided by the measured actual annual removed total nitrogen.

kg Methanol / kg T-N removed (committed) = committed chemical consumption in kg Methanol /kg T-N removed as follows:

Unit rates given in Schedule 11.6 by the Contractor shall be calculated according to the actual T-N load as explained above.

Annual Total nitrogen load is the average total nitrogen load for Stage 1 which is **462,820 kg**

Cost of chemical (methanol) = 500 € /ton

N; a fixed number as determined by the Employer (**10** in here)

### 3.5.3 Non-Performance Damages for failure to meet the natural gas consumption commitment

The non-performance damage to be paid to the Employer by the Contractor in the event of the actual consumption is more than committed shall be calculated as follows:

Value = [m<sup>3</sup> (actual) – m<sup>3</sup> (committed)] x annual suspended solid load x cost of gas x N

m<sup>3</sup> (actual) = the measured liquefied natural gas consumption in m<sup>3</sup> as follows:

Actual annual gas consumption measured for the sludge drying plant as explained above divided by the actual annual solid measured

kWh/m<sup>3</sup> (committed) = committed gas consumption in kWh/m<sup>3</sup> as follows:

Unit rates given in Schedule 11.7 by the Contractor shall be calculated according the actual suspended solid load as explained above.

Annual Suspended Solid load is the average SS load for Stage 1 – 2032 which is **2,317,020 kg**

Cost of gas = 0.550 € / m<sup>3</sup> (based on standardized liquefied natural gas corresponding to 9155 kcal/m<sup>3</sup>)

N; a fixed number as determined in the Employer Requirements (**10** in here)

### 3.5.4 Non-performance Damage for failure to meet the Spare Parts Guarantee

The amount of spare parts written in Schedule 10.6 of Volume 4 is only for tender evaluation purpose. Non-performance damage is not applicable for this item.